

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #10	CCRB Case #: 201605771	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/30/2016 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/30/2017	Precinct: 30		
Date/Time CV Reported Tue, 07/05/2016 2:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/05/2016 2:57 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Alexander Hwang	00000	900399	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Gertrude Escobar	16807	940902	030 PCT
2. POM Garfield Mead	28074	927637	030 PCT
3. SGT Miguele Amoresano	00076	924884	030 PCT
4. CPT Theodore Federoff	00000	919026	030 PCT
5. POF Christine Winter	16237	953573	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Alexander Hwang	Abuse: Lt. Alexander Hwang entered § 87(2)(b) in Manhattan.	A . Substantiated

Case Summary

On May 30, 2016, at approximately 11:00 a.m., § 87(2)(b) was inside of her home, located at § 87(2)(b), when she heard a knock at her door. § 87(2)(b) looked through the peep hole of her front door and saw that there were multiple uniformed police officers, § 87(2)(b) believed that there were three officers initially. § 87(2)(b) stated that they were all black males, but could not provide any additional descriptions of the officers. Neither § 87(2)(b) nor the officers said anything, but § 87(2)(b) saw that the officers were attempting to turn her door knob. § 87(2)(b) did not say anything and immediately ran into her bathroom and locked the door. § 87(2)(b)'s bathroom is very small, so she also placed a wooden board between the wall and the bathroom door in order to prevent the door from opening.

The officers then entered her apartment and drilled a hole through the lock of the door, and looked inside and saw the wooden board obstructing the door (**Allegation A**). The officers then proceeded to cut the bathroom door in half. § 87(2)(b) saw that there were four or five officers that handcuffed her and then removed her from her home into an ambulance.

§ 87(2)(b) was taken to § 87(2)(b), § 87(2)(b).
§ 87(2)(g).
This case exceeded the 90-day benchmark due to issues in officer identification.

Mediation, Civil and Criminal Histories

- Since § 87(2)(b) initially alleged property damage, this case was not suitable for mediation.
- A notice of claim inquiry was sent to the NYC comptroller's office on October 26, 2016. A response to this inquiry will be included in the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by or involving § 87(2)(b)
- Lt. Alexander Hwang has been a member of service for 24 years. He has had one prior CCRB case, containing one allegation for a threat of force, which was closed as "Complainant Uncooperative". § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- At the point of the initial entry into § 87(2)(b)'s apartment, Lt. Hwang was the ranking member of service on the scene and Lt. Hwang admitted that he made the initial physical entry, through § 87(2)(b)'s window. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A –Abuse of Authority- Lt. Alexander Hwang entered § 87(2)(b)

in Manhattan.

It is undisputed that § 87(2)(b) called 911 to report missing property from her house. The nature of the job was subsequently changed to a report of an Emotionally Disturbed Person, when § 87(2)(b) stated that she did not want the police to come and § 87(2)(b)

It is undisputed that subsequent to § 87(2)(b) being aware that officers were being dispatched to her apartment, she locked and barricaded herself inside her bathroom and did not respond to officers knocking at her door or calling her. It is undisputed that, without her consent, officers entered her apartment, broke down her bathroom door and removed her to the hospital (Board Review 01).

PO Gertrude Escobar (Board Review 02) and PO Garfield Mead (Board Review 03), assigned to the 30th Precinct, were the first officers that arrived on the scene. According to both officers, the assignment came over the radio as an Emotionally Disturbed Person. When they arrived at the location, both officers knocked on the front door of § 87(2)(b)'s apartment but did not hear a response. The two knocked on the door for several minutes, with no response, and then called the 911 dispatcher to call back § 87(2)(b). Through the 911 call, the officers were informed that § 87(2)(b) was inside the house, but refused to open the door for the police. As a result, PO Escobar and PO Mead called for their Sergeant, Sgt. Miguele Amoresano to respond to the scene.

Sgt. Amoresano (Board Review 04) testified that when he arrived, he too knocked on the front door of the apartment. Sgt. Amoresano also was informed by the officers on the scene that § 87(2)(b) was a Madarin speaker. He then used a language translation application on his cell phone to attempt to communicate with § 87(2)(b) but was unsuccessful. He also stated that he did not hear anything coming from inside the apartment. Sgt. Amoresano also contacted the 911 dispatcher and was informed that § 87(2)(b) was removed to the hospital by the police § 87(2)(b)

As evidenced by the Event information (Board Review 05), the 911 dispatcher also informed Sgt. Amoresano that § 87(2)(b) stated that someone in authority has threatened her life, and that she stated, “If one day she die she wants us to know—she wants us to know that she is a victim not a person with mental history” Sgt. Amoresano asked the 911 dispatcher to convince § 87(2)(b) to open the door for them, but § 87(2)(b) refused to do so. Sgt. Amoresano contacted his platoon commander, Lt. Alexander Hwang, who was also a Mandarin speaker.

Lt. Hwang testified (Board Review 06) that prior to arriving on the scene, he reviewed the event summary to that point, noting the statements § 87(2)(b) stated (above) and that she had a prior mental health history. Lt. Hwang also remembered § 87(2)(b) from prior interactions at the stationhouse. In the six months prior to this incident, § 87(2)(b) appeared at the stationhouse to complain about a “conspiracy theory” that the Chinese state police were after her and that U.S. authorities had not done anything about it, so she wanted to file complaints against the mayor, the governor, and the police department. Lt. Hwang described § 87(2)(b) as “EDP-ish,” “not in her right mind,” and “not all there.” When asked to describe what led him to describe her that way, Lt. Hwang responded that he “gets a feeling” and one “can tell,” but also stated that he was not a medical professional.

When Lt. Hwang arrived on the scene, Sgt. Amoresano informed Lt. Hwang that there was an Emotionally Disturbed Person § 87(2)(b) inside the apartment who would not open the

door. Sgt. Amoresano also informed Lt. Hwang that Emergency Services Unit had been contacted and were on their way. Lt. Hwang was also aware that the borough Duty Captain was also on his way, but he was not in direct contact with the Duty Captain during the incident. Lt. Hwang did not obtain any specific observations from Sgt. Amoresano on the scene and Sgt. Amoresano did not offer them.

Lt. Hwang knocked on § 87(2)(b)'s door, with no response, and could not hear anything from inside the apartment. Subsequently, he knocked on the next door neighbor's door. He and PO Mead were either allowed inside the neighbor's apartment (According to PO Mead Board Review 03), or accessed the fire escape through the roof of the apartment building (According to Lt. Hwang Board Review 06). From the fire escape, Lt. Hwang knocked on § 87(2)(b)'s window, and called out to her in Mandarin, again with no response. Both Lt. Hwang and PO Mead described the inside of the apartment to be apparently normal, with no broken property, or significant mess. Additionally, neither heard anything from inside the apartment. Lt. Hwang then without any additional provocation, opened § 87(2)(b)'s window and entered her apartment. PO Mead followed behind Lt. Hwang, and they opened the front door for other officers to enter.

Lt. Hwang stated that he entered for § 87(2)(b)'s safety, and was not worried about entering when he did because she was small and non-violent. Lt. Hwang stated that he believed she would hurt herself, because she had been declared an EDP and any EDP can hurt themselves. Other than the designation of EDP, Lt. Hwang stated that he had no other reason to believe she would hurt herself.

While inside the apartment, Lt. Hwang discovered that § 87(2)(b) had locked herself in her bathroom, and attempted to speak with her through the door. He confirmed that it was at this point that he heard § 87(2)(b)'s voice for the first time. While Lt. Hwang was attempting to speak with § 87(2)(b) Captain Theodore Federoff of the 30th Precinct (Board Review 06), entered the apartment and directed him and other officers inside to move away from the door, because ESU was present and they would be taking over the scene. ESU subsequently attempted to speak with § 87(2)(b) but she refused to open the bathroom door. ESU officers broke § 87(2)(b)'s door, removed her from her apartment and escorted her to an ambulance.

A warrantless entry into a person's home may be justified by the "emergency" doctrine when the following requirements are present, (1) the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by intent to arrest or seize evidence. (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Mitchell, 39 N.Y.2d 173 (1976)

Under federal law, the second prong of the *Mitchell* test, regarding the subjective motivation to enter has been rejected as a means to determine the application of the "emergency" doctrine, Brigham City v. Stuart, 547 U.S. 398 (2006). However, the subjective intent of officers may still be retained in the interpretation of the New York State Constitution People v. Desmarat, 38 A.D.3d 913 (2nd Dept. 2007). (Board Review 07)

§ 87(2)(g)

§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
[Redacted] It is therefore
recommended that **Allegation A** be closed as *substantiated*.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date